

Memo.No.205/Spl.B/2003-1, Genl. Admn. (Spl. B) Dept. dt.15.03.2003 regarding avoidance of quoting references and correspondence of APVC.

Subject Heading : Vigilance Commission - not to mention in references

Ref : 1. U.O.Note No.302/Spl.B/2000-1, G.A. (Spl. B) Dept., dt.13.03.2000.

2. U.O.Note No.1636/Spl.B/2000-1, G.A.(Spl.B) Dept., dt.04.09.2000.

The attention of all the Departments of Secretariat is invited to the instructions issued in the U.O.Notes first and second cited, wherein instructions were issued to the effect that while issuing orders by Government or Heads of Departments, care should be taken not to mention the advice or reference of Vigilance Commissioner. The Departments were requested to utilize the material supplied by the ACB or the advice tendered by the Vigilance Commission to take considered decision in disciplinary matters.

2. It is brought to the notice of the Government that inspite of the above specific instructions, the Departments of Secretariat / Head of Departments are violating these instructions and quoting the references received from the Vigilance Commission in their correspondence by which the accused officers are able to quote the references of the Vigilance Commission before the APAT / Courts etc. and thereby impleading the Vigilance Commission as one of the respondents.

3. In the circumstances, while reiterating the instructions issued in the U.O. Note first and second cited, the Departments of Secretariat / Head of Departments are once again requested not to quote the reference of the Commission and not to refer the advice of the Commission anywhere in the body of the letter or order issued by the Government or the Head of Department as the case may be.

4. These instructions should be scrupulously followed.